

Data Processing Agreement

This Agreement is made on 2 September 2020 between Arvato Payment Solutions GmbH, Gütersloher Straße 123, 33415 Verl, Germany (hereinafter "Arvato Payment Solutions") and Bergmann Elektronik AG, Industriepark 4, 90402 Nürnberg, Germany (hereinafter "Controller"), together the "Parties".

1. Scope of Services

Arvato Payment Solutions shall provide the services described in Annex 1 (the "Services") to Controller in accordance with this Agreement and the service levels agreed therein. Controller shall provide all information reasonably required for the performance of the Services.

2. Term and Termination

This Agreement enters into force on the Effective Date and shall run for an initial term of twenty-four (24) months. It renews automatically for successive periods of twelve (12) months unless terminated by either Party with three (3) months' written notice prior to the end of the then-current term. The right to terminate for cause remains unaffected.

3. Confidentiality

Each Party shall keep confidential all information obtained from the other Party in connection with this Agreement and shall use it solely for the purposes of this Agreement. This obligation survives termination for a period of five (5) years.

4. Data Protection

The Parties shall comply with applicable data protection law, in particular Regulation (EU) 2016/679 and the German Federal Data Protection Act (BDSG). Personal data shall be processed only for the purposes of this Agreement and deleted when no longer required.

5. Governing Law

This Agreement shall be governed by the laws of the Federal Republic of Germany, excluding the UN Convention on Contracts for the International Sale of Goods (CISG).

6. Dispute Resolution

All disputes arising out of or in connection with this Agreement shall be finally settled under the Arbitration Rules of the German Arbitration Institute (DIS) by three arbitrators. The seat of arbitration is Frankfurt am Main.

7. Assignment

Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, which shall not be unreasonably withheld.

8. Audit Rights

Controller may, upon thirty (30) days' written notice and no more than once per calendar year, audit Arvato Payment Solutions's compliance with this Agreement during normal business hours. Arvato Payment Solutions shall provide reasonable assistance and access to relevant records.

9. Notices

All notices under this Agreement shall be in writing and delivered by registered mail or e-mail to the addresses set out above. Notices are deemed received on the next business day.

For Arvato Payment Solutions GmbH:

Managing Director

For Bergmann Elektronik AG:

Authorised Signatory